

DATA PROCESSING ADDENDUM (DPA)

This Data Processing Addendum (“DPA”) forms part of and is incorporated into the Master Subscription Agreement, Terms of Service, or other written or electronic agreement between WanAware, Inc (“Provider”) and the entity agreeing to these terms (“Customer”) (together, the “Parties”) (the “Agreement”).

This DPA reflects the Parties’ agreement on the processing of Personal Data under Applicable Data Protection Laws.

1. Definitions

For the purposes of this DPA:

“Applicable Data Protection Laws” means all applicable laws, regulations, and binding decisions relating to data protection, privacy, and the Processing of Personal Data, including without limitation:

- The EU General Data Protection Regulation 2016/679 (“GDPR”)
- The UK Data Protection Act 2018 and UK GDPR
- The Swiss Federal Data Protection Act
- The California Consumer Privacy Act (“CCPA”) and California Privacy Rights Act (“CPRA”)
- Canada’s Personal Information Protection and Electronic Documents Act (PIPEDA)
- Australia’s Privacy Act 1988
- Japan’s Act on the Protection of Personal Information (“APPI”);

and any other applicable national or state/ provincial privacy legislation.

“Personal Data” means any information relating to an identified or identifiable person, as defined under Applicable Data Protection Laws.

“Processing” means any operation performed on Personal Data, including collection, recording, organization, storage, adaptation, retrieval, consultation, use, disclosure or erasure.

“Sub-processor” means any third party engaged by Provider to process Personal Data on behalf of the Customer.

2. Roles of the Parties

- Customer is the Data Controller (or equivalent role under non-EU laws)
- Provider is the Data Processor (or equivalent role)
- Provider processes Personal Data solely on documented instructions of Customer

3. Data Processing Details

The details of the Processing, including subject matter, nature, purposes, types of Personal Data, categories of Data Subjects, and duration, are set out in **Annex 1**.

4. Provider Obligations

Provider shall comply with Applicable Data Protection Laws and shall:

1. Process Personal Data only on documented instructions;
2. Ensure confidentiality of personnel with access;
3. Maintain security as per **Annex 2**;
4. Assist Customer with Data Subject Rights requests;
5. Notify Customer without undue delay of a Personal Data Breach;
6. Make information available for audits as described in Section 9;
7. Return or delete Personal Data upon termination as described in Section 11.

5. Sub-processing

- Provider may engage Sub-processors listed in **Annex 3**.
- Provider will notify Customer of changes and allow objections on reasonable grounds.
- Provider will enter into written agreements with Sub-processors ensuring data protection obligations no less protective than those in this DPA.

6. International Transfers

- Provider shall ensure transfers of Personal Data outside the originating jurisdiction are compliant with Applicable Data Protection Laws.
- For EU/UK/Swiss Personal Data, transfers will be based on:

- EU Standard Contractual Clauses (1021/914/EU), Module 2 (Controller – Processor), and
 - UK Addendum to the EU SCCs
- For other regions, Provider shall implement equivalent safeguards (adequacy, binding corporate rules, or contractual safeguards).

7. Data Subject Rights

Provider shall, taking into account the nature of processing, assist Customer by appropriate technical and organizational measures in fulfilling its obligations to respond to Data Subject requests.

8. Security Measures

Provider shall implement and maintain appropriate technical and organizational measures set out in **Annex 2**.

9. Audits

- Upon written request, Provider shall make available all information reasonably necessary to demonstrate compliance
- Audits may be conducted once annually by Customer or independent auditor, subject to confidentiality, reasonable notice and cost-sharing

10. Data Breach Notification

Provider shall notify Customer without undue delay after becoming aware of a Personal Data Breach, and shall cooperate to mitigate the breach and comply with regulatory obligations.

11. Return or Deletion

Upon termination or expiration of the Agreement, Provider shall delete or return Personal Data, unless retention is required by law.

12. Liability

Liability under this DPA is subject to the limitations and exclusions in the Agreement, unless prohibited by law.

13. Governing Law

This DPA is governed by the law designated in the Agreement, unless superseded by Applicable Data Protection Laws.

14. Order of Precedence

If there is any conflict between this DPA and the Agreement, the terms of this DPA control with respect to data protection matters.

ANNEX 1: DATA PROCESSING DETAILS

Subject Matter: Provision of IT and telecommunications infrastructure monitoring and management services.

Nature and Purpose of Processing: Storage, hosting, transmission, monitoring, analysis, troubleshooting, and support.

Duration: For the term of the Agreement and any post-termination retention required by law.

Categories of Data Subjects:

- Customer's employees, contractors, agents and end-users
- Any other individuals whose Personal Data is transmitted or stored within the Services

Types of Personal Data:

- Contact details (name, email, phone)
- Account credentials (usernames, hashed passwords)
- Network identifiers (IP addresses, device IDs, MAC addresses)
- Log data (timestamps, usage metrics, error data)
- Customer support communications

ANNEX 2: TECHNICAL AND ORGANIZATIONAL MEASURES

Provider will implement (at minimum):

1. **Access Control** – unique IDs, least privilege, MFA
2. **Data Encryption** – TLS 1.2+ in transit, AES-256 at rest
3. **Physical Security** – secure data centers, access logs, 24/7 monitoring
4. **System Security** – firewalls, intrusion detection, patch management
5. **Availability & Resilience** – redundancy, backups, disaster recovery
6. **Testing** – regular penetration tests and vulnerability scans
7. **Personnel Training** – security & privacy awareness training
8. **Incident Response** – documented plan, breach notification within legal timeframes

ANNEX 3: SUB-PROCESSORS

The Customer authorizes Provider to use the following Sub-processors:

Sub-processor	Location	Purpose of Processing	Safeguards
Amazon Web Services (AWS)	Global	Housing & infrastructure	SCCs/ adequacy
Amazon Web Services (AWS)	Global	Hosting & analytics	SCCs/ adequacy
Amazon Web Services (AWS)	Global	Asset dependency	SCCs/ adequacy
Amazon Web Services (AWS)	Global	Security Profiling	SCCs/ adequacy
Amazon Web Services (AWS)	Global	Performance and Security trending anomalies	SCCs/ adequacy
Google Cloud Platform (GCP)	Global	Housing & infrastructure	SCCs/ adequacy
Google Cloud Platform (GCP)	Global	Hosting & analytics	SCCs/ adequacy
Google Cloud Platform (GCP)	Global	Asset dependency	SCCs/ adequacy
Google Cloud Platform (GCP)	Global	Security Profiling	SCCs/ adequacy
Google Cloud Platform (GCP)	Global	Performance and Security trending anomalies	SCCs/ adequacy
Microsoft Azure (Azure)	Global	Housing & infrastructure	SCCs/ adequacy

Provider shall update this list as necessary and notify Customer of new Sub-processors before engagement.

	WANAware, Inc
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Signature:	Signature:
Printed Name:	Printed Name:
Title:	Title:
Date:	Date:

Effective 1 September 2025.